

98

BEFORE THE IOWA BOARD OF PSYCHOLOGY EXAMINERS

IN THE MATTER OF:	)	Case No. 97-001
	)	97-002
George Wayne, Ph.D.	)	
License No. 301-00640	)	
	)	SETTLEMENT AGREEMENT
Respondent.	)	AND FINAL ORDER

COMES NOW the Iowa Board of Psychology Examiners (Board) and George Wayne, Ph.D., (Respondent) and pursuant to Iowa Code sections 17A.10(2) and 272C.3(4) (1997) enter into the following Settlement Agreement and Final Order.

1. Respondent was issued license number 301-00640 to practice psychology in Iowa on January 25, 1991 and Respondent's license is current.

2. On or about September 16, 1997 the Board, upon a finding of probable cause, filed a Statement of Charges in this case, alleging that Dr. Wayne had engaged in acts violative of the Board's ethical rules and rules governing the practice.

3. The Board has jurisdiction over the parties and the subject matter.

4. Execution of this Settlement Agreement and Final Order constitutes resolution of this contested case. By executing this Settlement Agreement and Final Order, Respondent expressly waives all rights to a hearing on the charges contained in the Statement of Charges and waives any objection to this Settlement Agreement and Final Order.

5. Respondent is freely and voluntarily entering into this agreement and he agrees that the State's attorney may present the

agreement to the Board.

6. This Settlement Agreement and Final Order is subject to approval of the Board. If the Board fails to approve this agreement, it shall have no force or effect to either party.

7. The Board's approval of this Settlement Agreement and Final Order shall constitute the resolution of a contested case proceeding and shall be a FINAL ORDER of the Board.

8. This Settlement Agreement and Final Order is a public record available for inspection and copying in accordance with the requirements of Iowa Code Chapter 22.

9. The terms and conditions imposed by this Settlement Agreement and Final Order shall become effective twenty-one days after the date on which it is approved by the Board and the parties agree that upon the satisfactory completion of the terms and conditions imposed herein, the Respondent's license shall be restored to its full privileges.

10. Respondent admits that, had this case proceeded to hearing, the State would have presented evidence to establish that Respondent engaged in a multiple relationship that could have been deemed to be inconsistent with the Ethical Principles of Psychologists and the Board's administrative rules. There has been no evidence of substandard therapy provided to any patient and the charges in this case do not arise out of a complaint from a patient.

11. In executing this settlement agreement Respondent makes no admissions regarding the factual and legal issues involved in

the Statement of Charges and approval of this settlement agreement shall not be deemed to imply that the Respondent makes any admissions regarding the facts and legal issues.

12. Respondent agrees that multiple relationships with patients can violate the Ethical Principles of Psychologists, can violate the Board's administrative rules, and can constitute acts harmful and detrimental to the public.

13. This Settlement Agreement and Final Order shall be part of the permanent record of the Respondent and shall be considered by the Board in determining the nature and severity of any disciplinary action to be imposed in the event of any future violations.

14. In the event Respondent violates or fails to comply with any of the terms of this Settlement Agreement and Final Order, the Board may initiate appropriate action to revoke or suspend Respondent's license or to impose other licensee discipline in accordance with Iowa Code section 272C.3(2)(a).

IT IS HEREBY ORDERED:

Iowa Board of Psychology Examiners license number 301-00640 is suspended for a period of thirty days effective twenty-one days after this agreement is approved by the Board. During the period of suspension, the Respondent shall not hold himself out to be a licensed psychologist and shall not engage in the practice of psychology. It is further ordered that, following the successful completion of the period of suspension, Respondent's license shall be placed on probation for a period of one year. In addition, the

Respondent must comply with the following terms:

1. During the period of probation, Respondent agrees that his practice in psychology shall be supervised by a licensed psychologist approved by the Board. Respondent agrees that he shall secure an approved supervisor prior to recommencing his practice in psychology and the Board agrees that it shall provide timely review of all requests for approval of a supervisor. The supervision required under this order shall include a review of practice issues, including handling of cases, the maintenance of professional boundaries, and any ethical issues which might arise. The supervision shall be conducted in accordance with a written plan of supervision and shall be set up as follows:

a. The Respondent shall provide the approved supervisor with copies of all of the following materials:

- (1) This agreement and final order of the Board;
- (2) The Board's statement of charges against the Respondent;
- (3) The assessment of Respondent performed by Gary Schoener, Licensed Psychologist; and
- (4) Any other information concerning this case deemed necessary to the plan of supervision.

b. The supervisor shall receive a release from the Respondent to communicate with Gary Schoener in the design of the supervision plan, as needed, or to discuss any problems which might arise during the course of supervision.

c. The supervision plan will consist of case reviews

with at least 3/4 of the supervision time being face-to-face. These case reviews should average at least four hours per month and shall be part of the written supervision plan. These case reviews shall also include review of clinical records as necessary.

d. The Respondent shall furnish actual, or copies of, clinical records as requested by the supervisor. If audiotapes are requested by either the supervisor or the Board, in the event that such audiotapes are necessary in order to review the supervision or the Respondent's compliance with this order, the Respondent shall seek client permission to tape the session and to provide the tape to the supervisor;

e. The supervisor may request additional information from the Respondent in order to construct the written plan of supervision and the Respondent shall provide the information requested;

If the Respondent fails to attend a supervisory meeting without explanation so that there is a question as to whether the supervision is ongoing, the supervisor shall contact the Board immediately. The supervisor shall also contact the Board immediately if he/she believes that the public may be at risk based upon violations of the Board's administrative rules or the Ethical Principles of Psychologists. In addition, the supervisor shall be required to report to the Board any violation of the Board's administrative rules committed by the Respondent.

The supervisor shall be required to submit quarterly reports to the Board regarding the supervision. Said reports shall

include: a copy of the written plan of supervision; the dates and amount of time spent on supervision meetings; a general characterization of the supervision and how it is proceeding; and a description of any additional contact the supervisor has had with the Respondent in between supervision meetings. All reports from the supervisor shall be sent directly to the Board Administrator and shall be postmarked by the 10th of the month following the quarter which is the subject of the report. Any costs associated with Respondent's compliance with this Final Order shall be the responsibility of the Respondent.

2. Respondent shall comply with the Ethical Principles of Psychologists as specified in the Board's administrative rules and shall comply with all rules promulgated by the Board.

3. Respondent shall take the 18 hour program entitled "Ethical Conflicts in Psychology" of the American Psychological Association and successfully complete the program's examination before the end of probation.

5. During the duration of the terms and conditions imposed by the order, Respondent agrees to make available to the Board any and all records requested for review.

6. Respondent agrees to appear before the Board prior to the completion of the period of probation in order to discuss his compliance with this agreement.

George Wayne

Dr. George Wayne, Ph.D.

11/10/98

Date:

This Settlement Agreement and Final Order is approved by the
Iowa Board of Psychology Examiners on November 13, 1998.

Scott W. Shaper

Iowa Board of Psychology Examiners

STATE OF IOWA
BEFORE THE IOWA BOARD OF PSYCHOLOGY EXAMINERS

IN THE MATTER OF LICENSE

*
*
*
*
*
*
*

CASE NO: 97-001
97-002

GEORGE WAYNE, PH.D.

CORRECTED
NOTICE OF HEARING

RESPONDENT

TO THE ABOVE NAMED RESPONDENT:

On the 16th day of September, 1997, the Iowa Board of Psychology Examiners concluded that probable cause exists to file a statement of charges and order a hearing in this matter.

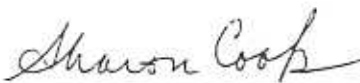
IT IS HEREBY ORDERED that a hearing be held upon the Statement of Charges. You are notified that a hearing will be held at 9:00 a.m. on the 21st day of November, 1997 at the Hotel Fort Des Moines, Room #318, 10th & Walnut Streets, Des Moines, Iowa.

You may appear personally and be represented by legal counsel at your expense, with the right to produce evidence in your behalf, to examine and cross-examine witnesses and to examine documentary evidence produced against you. If you fail to appear and defend, the hearing will proceed and a decision will be made.

You are hereby notified that the office of the Attorney General is responsible for representation of the public interest in these proceedings. Copies of all pleadings should be served on counsel at the following address:

Jean Davis
Assistant Attorney General
Hoover State Office Building
Des Moines, IA 50319

Dated this 16th day of September, 1997.



Sharon Cook, Board Administrator
Iowa Board of Psychology Examiners

STATE OF IOWA
BEFORE THE IOWA BOARD OF PSYCHOLOGY EXAMINERS

IN THE MATTER OF LICENSE	*	CASE NO: 97-001
	*	97-002
	*	
GEORGE WAYNE, PH.D.	*	NOTICE OF HEARING
	*	
RESPONDENT	*	

TO THE ABOVE NAMED RESPONDENT:

On the 16th day of September, 1997, the Iowa Board of Psychology Examiners concluded that probable cause exists to file a statement of charges and order a hearing in this matter.

IT IS HEREBY ORDERED that a hearing be held upon the Statement of Charges. You are notified that a hearing will be held at 9:00 a.m. at the Hotel Fort Des Moines, Room #318, 10th & Walnut Streets, Des Moines, Iowa.

You may appear personally and be represented by legal counsel at your expense, with the right to produce evidence in your behalf, to examine and cross-examine witnesses and to examine documentary evidence produced against you. If you fail to appear and defend, the hearing will proceed and a decision will be made.

You are hereby notified that the office of the Attorney General is responsible for representation of the public interest in these proceedings. Copies of all pleadings should be served on counsel at the following address:

Jean Davis
Assistant Attorney General
Hoover State Office Building
Des Moines, IA 50319

Dated this 16th day of September, 1997.


Sharon Cook, Board Administrator
Iowa Board of Psychology Examiners

BEFORE THE IOWA BOARD OF PSYCHOLOGY EXAMINERS

IN THE MATTER OF:

GEORGE WAYNE, Ph.D.,
License No. 301-00640,

Respondent.

CASE NOS. 97-001
97-002

STATEMENT OF CHARGES

TO THE ABOVE-NAMED RESPONDENT:

The Iowa Board of Psychology Examiners has jurisdiction over this matter pursuant to Iowa Code chapters 17A, 154B, and 272C (1995) and (1997).

Licenses issued by the Board are subject to the laws of the state of Iowa and to the administrative rules of the Board.

Respondent George Wayne, Ph.D. was at all times during the following events licensed to practice psychology. Respondent was issued license number 301-00640 to practice psychology in the state of Iowa on January 25, 1991, as recorded in the permanent records in the office of the Board.

Respondent's license to practice psychology in Iowa is current and will next expire on June 30, 1998.

Respondent's current address as reported to the Board is 611

Church St., Ottumwa, IA 52501.

COUNT I

Respondent is charged with violating Iowa Code Section 272C.10 and 645 Iowa Administrative Code 240.212(1) (c), 240.212(2), 240.212(6), and 240.212(14) by willfully engaging in unethical conduct or conduct harmful or detrimental to the public and by failing to comply with the *Ethical Principles of Psychologists and Code of Conduct of the American Psychological Association (Code of Conduct)*, incorporated by reference in the aforementioned rule. Specifically, Respondent failed to comply with Principles B. and E. and Sections 1.14, 1.15, and 1.17 of the *Code of Conduct* when he entered into multiple relationships with a client, patient #1.

CIRCUMSTANCES

1. Patient #1, an adult resident of Mahaska County, entered into a therapeutic relationship with the Respondent on or about October 25, 1995.

2. Respondent formed a psychologist-patient relationship with Patient #1. as of at least October 1995 and saw Patient #1 for therapy on a weekly basis until July 24, 1996.

3. Respondent's sessions with Patient #1 included both individual therapy sessions and marital therapy sessions at which Patient #1's spouse was in attendance.

4. Respondent and Patient #1 started living together shortly after their respective divorces and have lived together since at least February 1997.

5. Respondent has engaged in multiple relationships with his client Patient #1 since at least December 1996 and said relationship is continuing.

COUNT II

Respondent is charged with violating 645 Iowa Administrative Code 240.212(9) by failing report a change of address within 30 days after it occurs.

CIRCUMSTANCES

1. Respondent has incurred at least one change of address since on or about December 1996 and has failed to file the required report(s) with the Board.

FINDING OF PROBABLE CAUSE

On August 28, 1997, the Iowa Board of Psychology Examiners found probable cause to file this Statement of Charges and the two orders which accompany this Statement of Charges and to order that a hearing be set in this case.

Executed this 16th day of September, 1997.



Robert D. Jones, Ph.D.

Iowa Board of Psychology Examiners
Board Chairperson

BEFORE THE IOWA BOARD OF PSYCHOLOGY EXAMINERS

IN THE MATTER OF:	)	Case No. 00-009
	)	
GEORGE WAYNE, Ph.D.	)	COMBINED STATEMENT
License No. 301-00640	)	OF CHARGES AND
	)	SETTLEMENT AGREEMENT
Respondent.	)	AND FINAL ORDER
	)	

COMES NOW the Iowa Board of Psychology Examiners (Board) and George Wayne, Ph.D. (Respondent), and, pursuant to Iowa Code sections 17A.10(2) and 272C.3(4), file this Combined Statement of Charges, Settlement Agreement and Final Order.

STATEMENT OF CHARGES

1. The Respondent was issued license number 301-00640 to practice psychology in the State of Iowa on January 25, 1991. The Respondent's license is current and will next expire on June 30, 2000.
2. The Board has jurisdiction over the parties and the subject matter pursuant to Iowa Code Chapters 17A, 154B and 272C (1999).
3. Licenses issued by the Board are subject to the laws of the State of Iowa and to the administrative rules promulgated by the Board.
4. The Respondent has a history of disciplinary action with the Board, and from December 1998 through December 1999 the Respondent's license to practice was a probationary license subject to specific terms and conditions, including the requirement that

he comply with the Ethical Principles of Psychologists specified in the Board's administrative rules and with all rules promulgated by the Board.

COUNT I

5. The Respondent is charged under Iowa Code sections 147.55(3) and 272C.10(3) (1999), and 645 IAC 240.212(1)(c) and (h) and 240.212(7)(f) with repeatedly violating the laws and rules governing the practice of psychology and with engaging in unethical conduct and conduct harmful and detrimental to the public when he engaged in a sexual relationship with a patient.

COUNT II

6. The Respondent is charged under Iowa Code section 272C.3(2)(a) and 645 IAC 240.212(2) with failing to comply with a prior order of the Board imposing licensee discipline.

CIRCUMSTANCES

7. The Respondent is a psychologist practicing in Ottumwa and Jefferson, Iowa.

8. In June 1999 the Respondent commenced a doctor-patient relationship with Patient #2 and saw Patient #2 for therapy on several occasions.

9. In July or August 1999, during three separate therapy sessions, the Respondent initiated and engaged in sexual contact with Patient #2.

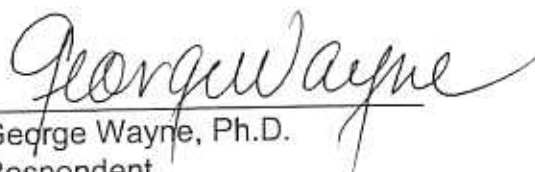
10. The Respondent's conduct with Patient #2 was in violation of the Board's Order of November 1998 and in violation of the laws and rules governing the practice of psychology.

SETTLEMENT AGREEMENT AND FINAL ORDER

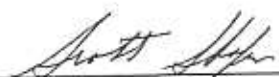
11. The Board has jurisdiction over the parties and the subject matter.
12. By executing this Settlement Agreement, the Respondent expressly waives the right to notice and hearing on the charges.
13. Respondent is freely and voluntarily entering into this agreement, and he agrees that the State's counsel may present this agreement to the Board.
14. This Statement of Charges and Settlement Agreement is subject to approval of the Board. If the Board fails to approve this Statement of Charges and Settlement Agreement, it shall have no force or effect to either party.
15. The Board's approval of the Statement of Charges and Settlement Agreement shall constitute the resolution of a contested case proceeding and shall be a FINAL ORDER of the Board.
16. The Respondent does not contest before the Board the allegations of the current charges.
17. The Respondent agrees to voluntarily surrender his license to practice psychology in the state of Iowa and also agrees that, pursuant to Iowa Code section 154B.8, a voluntarily surrender must be accompanied by a written statement of intention, attached hereto as Attachment A; and when accepted by the director of public health, the Respondent agrees that the voluntary surrender shall have the same force and effect as an order of revocation issued by the Board.
18. The Respondent hereby agrees not to engage in the practice of psychology in the state of Iowa.

19. The Respondent agrees that should he ever seek reinstatement of his license to practice psychology that he shall be required to submit evidence to the Board's satisfaction that he is prepared to practice in a manner which shall conform to the laws and rules governing the practice of psychology in Iowa.

20. This Statement of Charges and Informal Settlement Agreement are public records available for inspection and copying in accordance with the requirements of Iowa Code Chapter 22 and shall become a part of the permanent record of Respondent.


George Wayne, Ph.D.
Respondent

The statement of charges and informal settlement agreement is approved by the Board on this 21 day of April, 2000.


Dr. Scott Shafer, Chair
Iowa Board of Psychology Examiners

IN THE DISTRICT COURT OF IOWA, IN AND FOR JEFFERSON COUNTY

FEB 27 2001

THE STATE OF IOWA,

Plaintiff,

Cause No. FECR003297.

vs.

GEORGE WAYNE,

Defendant.

JUDGMENT ENTRY
AND ORDER

FILED
01 FEB 26 PM 1:07

On February 26, 2001, the State appeared in open court by Timothy W. Dille, Prosecuting Attorney for Jefferson County, and the defendant appeared in person and by Kenneth J. Ketterhagen, his attorney. The record in this matter shows that on January 8, 2001, the defendant entered a plea of guilty to the following crime: Sexual Exploitation by a Counselor or Therapist, in violation of Iowa Code Section 709.15(1)(f)(1), as charged in the trial information, and said plea of guilty was accepted by the court. The court found and notified the defendant that Sexual Exploitation by a Counselor or Therapist is a sexually predatory offense under Iowa Code Chapter 901A and that future convictions of sexually predatory offenses are subject to sentencing enhancements. Based on the record made, a judgment of conviction is hereby entered against the defendant for the crime of Sexual Exploitation by a Counselor or Therapist, a sexually predatory offense.

The court has considered all the sentencing options set forth in Iowa Code Section 901.5, and its judgment relative to sentence is based upon that which would provide maximum opportunity for the rehabilitation of the defendant and at the same time protect the community from further offenses by him and others. The court has also considered the defendant's age, his family circumstances, his employment circumstances, the nature of the offenses committed, the defendant's prior criminal record, the statements of counsel, and all other matters pertinent to this case, and for all of the reasons stated in the record the Court now imposes the following sentence.

IT IS ORDERED BY THE COURT, acting pursuant to the provisions of Iowa Code Section 709.15 and Chapter 902, that the defendant be and he is hereby committed to the custody of the Director, Department of Adult Corrections, State of Iowa, for a term not to exceed five years and shall pay a fine in the amount of \$750.00, plus the statutory 30% surcharge and court costs in the amount of \$ 60.00 (clerk assess). The defendant shall also reimburse the State of Iowa for his court-appointed attorney's fees.

IT IS FURTHER ORDERED BY THE COURT, conditioned upon the defendant's future good behavior, that the sentence of imprisonment herein imposed shall stand suspended, and the defendant is hereby placed on probation for a period of four years under the supervision of the director of the Eighth Judicial District Department of Correctional Services or his designee. The defendant shall report to the Department of Correctional Services this date to make arrangements for supervised probation and shall comply with all rules and regulations of probation imposed by said Department, as well as the following special conditions imposed by the Court:

1. The defendant shall participate in and successfully complete all requirements of the Sex Offender Treatment Program.
2. The defendant shall pay all court costs and costs pertaining to this case, including attorney fees and fees incurred by the Department of Corrections.

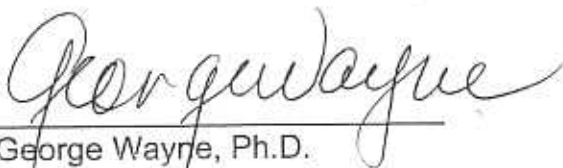
Dr. Stephen Gleason, D.O.
Director
Iowa Department of Public Health
Lucas State Office Building
Des Moines, Iowa 50319

Dear Dr. Gleason:

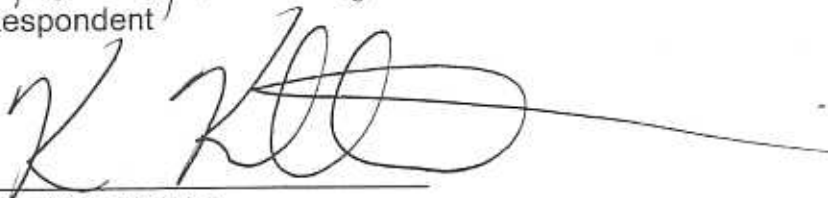
You are hereby notified that in accordance with the provisions of Iowa Code section 154B.8, this letter shall constitute my written statement of intention to voluntarily surrender the enclosed license to practice psychology in the state of Iowa. You are further notified that I fully understand that upon your acceptance of this voluntary surrender of my license, such acceptance shall have the same force and effect as an order of revocation.

You are further notified that I hereby affirm my decision not to engage in the practice of psychology in the state of Iowa, and I hereby absolve and release the Iowa Department of Public Health and the Iowa Board of Psychology Examiners from any further right, claim, or title to the certificate of license and to any of the rights, privileges and honors pertaining thereto.

This written statement is my intention to voluntarily surrender my psychology license and is being signed by me on this 10 day of April, 2000, as my own voluntary act and deed.



George Wayne, Ph.D.
Respondent



Ken Ketterhagen
Attorney for Respondent

ATTACHMENT A